

EG Europe: Dispatch from Paris— French far-right odds grow despite legal tangle

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Dispatch from Paris— French far-right odds grow despite legal tangle

This is the latest in a series of periodic letters to clients in which Eurasia Group's practices present their views on forthcoming political and macro developments for their regions or sectors.

France is struggling to digest the far-reaching effects of the resurrection of Marine Le Pen. After conversations with senior figures in Paris last week, it is clear that a far-right triumph in May next year, with significant implications for France and Europe, has become more likely. Le Pen, now labeled by supporters as a "miraculous survivor," will be harder to beat than her inexperienced, 30-year-old understudy Jordan Bardella. Two opinion polls since the 7 July ruling have shown the far-right leader comfortably beating all possible rivals in the two-candidate runoff on 2 May.

I will return to the politics of the race later. First, let me unpack some of the complexities of a legal battle which is already ten years old.

Le Pen bets on a risky legal strategy

The legal situation is now, frankly, bizarre. If Le Pen technically wins her second and final appeal to the Court of Cassation, France's highest court, she risks losing her political reprieve. The Paris appeal court confirmed her conviction for misusing EU funds but reduced her five-year political ban to time already served, clearing her path to appear on the ballot. A cassation victory would strike that ruling down and send the case back for a retrial that could not be scheduled before the election. What would happen then is contested.

The most plausible reading is that striking down the appeal ruling would reinstate her original 2025 sentence and its immediately enforceable five-year political ban. Winning in legal terms could therefore cost her the candidacy she has just recovered. Ultimately, the Constitutional Council, which vets presidential candidates, might have to decide how to act days before the vote, in a situation with no precedent.

On the other hand, if she loses her appeal to the Court of Cassation, she wins politically. She might have to campaign for a couple of weeks under house arrest and wearing an electronic tag on her ankle. More likely, her lawyers will delay the proceedings until well after the second round on 2 May. If the decision

comes after a Le Pen victory in the election, she would be protected by presidential immunity.

The Court of Cassation can only rule on a point of law, not on facts. Le Pen says that she was prosecuted under a law intended to stop French officials from stealing French public money. That, she claims, cannot apply in this case, as she was serving as a member of the European Parliament, and was accused of misusing EU funds. This argument has already been rejected twice by lower courts. But if the cassation judges agree with her, the implications would be enormous.

If the cassation judgment comes before the first week in March, she would be forced to give way for Bardella. If the judgment falls in late March or April beyond the final registration deadline, the Rassemblement National (RN) might have no candidate at all.

That outcome is very unlikely. Le Pen is taking the risk because she knows her case is weak to nonexistent. The real game is delay and more delay.

Normally, cassation cases and judgments take 18 months. Last week, the court said they would try to rule on Le Pen's case "by early April at the latest." The likelihood is there will be no judgment before the election or that she will lose the case; her lawyers will use every possible tactic to slow progress. If her appeal is rejected before round one (18 April), she is counting on the judgment coming too late for her to have to wear a prison bracelet.

The Court of Cassation could also refuse to consider Le Pen's appeal at all. Her second conviction and sentence to 12 months house arrest would then be definitive. This is also regarded as unlikely in such a high-profile case.

Le Pen's return will boost Philippe and disrupt RN's appeal to traditional conservatives

Le Pen gained an immediate bounce in popularity from her resurrection. An Ipsos poll on 9 July put her at 36% in round one-- her highest ever score. An Elabe poll on 12 July gave her 33%-35%. The situation is reminiscent of Donald Trump and, for France, unprecedented. A twice-convicted criminal is leading the opinion polls on a law-and-order ticket.

Based on my conversations last week with senior French political figures, I believe Le Pen's criminal status could eventually weigh against her. Her heavily working-class core support does not care about her double conviction. But the older and more conservative swing voters that Le Pen needs to prevail in the two-candidate second round on 2 May could be a different story. "This is not the United States," one former minister told me. Much of the 15% or so of the electorate which Le Pen still needs to reach 50% plus one vote in round two takes the law seriously.

Whether or not Le Pen has to wear an ankle monitor is not the crucial issue. If the Court of Cassation rejects her appeal before the first round on 18 April, Le Pen will be confirmed as a convicted embezzler. Even a marginal impact on the vote could be significant.

Politically, Le Pen's reprieve has two other intriguing implications.

First, it will improve the already strong chances of the former centrist prime minister Edouard Philippe, 55, of reaching the second round and facing off against Le Pen. When Bardella was the likely RN candidate and front-runner, there was a case for Philippe's main rival, another former centrist prime minister, Gabriel Attal. He is significantly younger at 37 and could counter Bardella's boyish charm with his own.

The return of Le Pen makes seniority more valuable. The best way to counter her experience and presidential credibility is with Philippe's experience and presidential credibility.

There is no formal deal between Philippe and Attal to allow the stronger candidate to run alone from the start of the new year, but there is a shared understanding that they cannot both still be in the race on 18 April. That would risk the second runoff place being snatched by the hard-left candidate, Jean-Luc Melenchon (who was just behind Philippe at 15%-16% in Sunday's Elabe poll).

Secondly, Le Pen's decision to relegate Bardella to running mate and candidate for prime minister has upset some senior RN figures. The Bardella faction within the party had been pushing for a more coherent and less populist campaign platform. Le Pen's return means the revival of "Marinomics"- a please-all jumble of low taxes and high social spending, free markets and state interference.

Bardella himself has been less than effusive in public about his leader's return. The RN and its predecessor the Front National have been torn apart in the past by quarrels over the untouchable status of the Le Pen clan. It could happen again.

The return of Le Pen has also upset the French and international business community. Bardella had reached out to employers, promising business-oriented policies and a more pragmatic approach to the EU. A senior business leader told Le Figaro off the record this week that he regarded Le Pen's more statist approach as "Soviet-like" and a potential "calamity." Such views could weigh heavily with the older and wealthier electorates that Le Pen needs in round two.

For now, Eurasia Group's base case remains a very tight race, with a narrow Philippe victory still the most likely outcome.

Happy to discuss,

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